



Appeal Decision

Site visit made on 25 August 2026

by C McDonagh BA (Hons) MA MRTPI

an Inspector appointed by the Secretary of State

Decision date: 11 September 2026.

Appeal Ref: 6010260

Land to east of Old Shackerley Lane, Old Shackerley Lane, Albrighton WV7 3AB

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant permission in principle.
 - The appeal is made by B Parry against the decision of Shropshire Council.
 - The application Ref is 25/04594/PIP.
 - The development proposed is for 1 or 2 number detached dwellings.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. The Planning Practice Guidance (PPG) advises that permission in principle is an alternative way of obtaining planning permission for housing-led development. This has 2 stages: the first stage (permission in principle) establishes whether a site is suitable in principle and the second (technical details consent) assesses detailed development proposals. This appeal relates to the first of these two stages.
3. The scope of the considerations for permission in principle is limited to location, land use and the amount of development. All other matters are considered as part of a subsequent technical details consent application if permission in principle is granted.
4. The Council did not provide an officer's report explaining its reasons for refusal, nor do I have an appeal statement. I have therefore based my reasoning on the decision notice and the appellant's statement only.
5. On 17 August 2026, a revised National Planning Policy Framework (the Framework) was published by the Government. This is a material consideration in the decision-making process from the day of publication. The main parties were given the opportunity to comment on the changes and the implications for the appeal, with their respective observations taken into account where relevant.

Main Issue

6. The main issue is whether the appeal site is suitable for housing having regard to its location, with particular focus on the Green Belt, spatial strategy of the development plan and the character and appearance of the area.

Reasons

Whether Inappropriate in the Green Belt

7. The appeal site is located within the Green Belt and as such I have had regard to policy GB7 of the Framework. This lists exceptions to the presumption against development in the Green Belt. Neither party has clarified which exception the proposal was assessed against in order to ascertain whether it would be inappropriate or otherwise. From all that I have seen and read, the most relevant exception is part 1e of policy GB7. This relates to the redevelopment of previously developed land (including a material change of use to residential or mixed-use including residential), which would not cause substantial harm to the openness of the Green Belt.
8. Policy CS5 of the Shropshire Local Development Framework Adopted Core Strategy (CS) (adopted March 2011) states that new development will be strictly controlled in accordance with national planning policies protecting the countryside and Green Belt, although it also provides for other exceptions outside the scope of the Framework.
9. The appeal site comprises an enclosed parcel of land associated with No.5 Shackerley Cottages which is one of 4 cottages in a small cluster to the east. I understand that the 4 cottages were formerly part of an agricultural holding at Shackerley Farm and were erected in the 1960s for use by workers on the farm. The appeal site itself formerly hosted 4 other cottages which predated the aforementioned 4 adjacent cottages. The dwellings as they exist today were evidently granted permission to remove their respective agricultural ties through the removal of a condition to that effect.
10. On my site visit I observed that the appeal site now presents as a domestic garden and is laid to grass with the expected associated paraphernalia such as a shed, greenhouse and children's toys. I see no reason to doubt that the site historically included dwellings given the lack of evidence to the contrary and the submitted OS map provided by the appellant.
11. That being said, the Framework is clear that previously developed land excludes land that was previously developed but where the remains of the permanent structure or fixed surface structure have blended into the landscape. There was one low level brick structure evident on the appeal site that appeared to possibly be remains of a former dwelling or outbuilding. However, it was clear from my observations that the former dwellings had blended into the landscape given the domestic use of the site in relation to the ancillary relationship to No.5. As such, they would not meet the exception under policy GB7(1)(e).
12. The appellant has referenced policies GB3(2)(a) and GB7(1)(a) of the Framework, albeit the former relates to the altering of Green Belt boundaries in plan-making rather than decision taking. The former involves the exceptions for development which is for agriculture, horticulture and forestry, or which is solely for nature conservation, restoration and/or enhancement. There is nothing before me to indicate that any of these are relevant to the proposal.
13. There are no other arguments put forth under other exceptions. Regardless of the presence of other dwellings nearby, the proposal would therefore be inappropriate

in the Green Belt. This would be contrary to policy GB7 of the Framework and policy CS5 of the CS.

Openness of the Green Belt

14. Section 13 of the Framework advises that the Government attaches great importance to Green Belts, with the fundamental aim to prevent urban sprawl by keeping land permanently open. This includes an assessment of both spatial and visual openness and the effects of the proposal.
15. Due to the domestic nature of the appeal site, and hedgerows lining the south side of the boundary, visibility is largely limited to the adjacent dwellings. In terms of impacts upon openness visually, this would be very limited. However, where there is currently garden there would be 1 or 2 dwellings. While I don't have detailed designs at this stage, there would invariably be a loss of spatial openness due to the construction of dwellings and associated hardstanding.
16. Taken together, there would be a limited loss of openness of the Green Belt overall. Invariably this would result in harm to the Green Belt given its purposes, contrary to policy GB6 of the Framework. This harm must be given substantial weight.

Whether Suitable Location

17. The CS generally seeks to direct development to where it is most suitable and needed through policy CS1. A hierarchy of settlements is used, although the appeal site is not located within any of these. For the purposes of planning the appeal site is in the countryside, where policy CS5 states that development will be strictly controlled in accordance with national planning policies protecting the countryside. There are a number of exceptions given which broadly align with those given in the Framework.
18. Policy MD7a of the Site Allocations and Management of Development Plan (SAMDEV) (adopted December 2015) goes on to state that further to Core Strategy policies CS5 and CS11, new market housing will be strictly controlled outside of Shrewsbury, the Market Towns, Key Centres and Community Hubs and Community Clusters. Suitably designed and located exception site dwellings and residential conversions will be positively considered where they meet evidenced local housing needs and other relevant policy requirements. The proposal would not meet any of these exceptions.
19. Policy S5 of the Framework advises that only certain forms of development should be approved outside settlements which are listed within part 1 (a-j) of policy S5. However, section 5 of S5 is clear that this policy does not apply to proposals in the Green Belt, unless the proposal would not be inappropriate in accordance with policy GB7. I have found the proposal would be inappropriate in the Green Belt, contrary to GB7.
20. I note the points made the appellant with regards to services and facilities nearby. However, given the circumstances of Shackerley Lane, which is narrow, unlit and has a national speed limit, I find it highly unlikely prospective future residents would choose to walk or cycle to the nearest shop or onto services in Albrighton from the appeal site. They would therefore be highly reliant on the private vehicle to access their day-to-day needs.

21. The matter in question is not whether the site is isolated, and I disagree that there are a 'considerable' number of houses in the locality. The area is inherently rural, where the development of houses is generally tightly controlled. The spread of houses in the wider area is generally reflective of that type of location. Regardless, the site is not within a recognised settlement in policy terms, and it does not meet any of the given exceptions in either local or national policy.
22. As such, I do not consider the location to be suitable for the proposed dwellings and there are no material considerations which indicate otherwise. This would conflict with policies CS1 and CS5 of the CS and MD7a of the SAMDEV which seek to direct development to the larger settlements of the area while the proposal does not meet any exceptions to the strict control of development outside of identified settlements.

Character and Appearance

23. The appeal site presents as a residential garden. It is located in a rural area surrounded by agricultural fields, narrow roads and woodland pockets. The M54 motorway to the south is a stark urbanising influence, albeit development is generally sparse in the area and is formed of limited detached dwellings and farmsteads.
24. Although I take on board the Council's concerns that the proposal would harm the rural character of the area, there are no definitive plans before me to substantiate this. To my mind, the proposal deals with matters of principle, and the Council has not substantiated this concern with an officer report or an appeal statement. The appellant has advised that the design approach would be to meet the exception given in of the Framework insofar as it would represent a design of exceptional quality.
25. I see no reason why this could not be achieved and with these matters determined under a technical details consent application, the proposal could accord with policies MD2 and MD7a of the SAMDEV which seek to ensure development would contribute to and respect locally distinctive or valued character and existing amenity value. The proposal could also accord with policy DP3 of the Framework which seeks to ensure development proposals should respond to their context (the history, character and features of their site and its setting), so that they integrate with and enhance their surroundings.

Other Considerations

26. There is no dispute between the main parties that the Council cannot demonstrate a five-year supply of deliverable housing sites. This figure is put at 3.81 years by the Council, and I see no reason to dispute it. As such, the contribution of 1-2 dwellings would make an important but limited contribution this undersupply. There would be further limited positive weight accrued through the construction process.
27. I have found that the site would not be previously developed and as such the reuse of such land would not weigh in favour of the scheme. The appellant advises that the dwellings would be self-build, although there is no planning obligation before me to secure this tenure. I cannot give this weight as a result.
28. Any boost to local services and facilities from new residents would be counteracted by the need to take these journeys in private vehicles given the lack

of evidence showing that sustainable travel options have been prioritised. The lack of harm to heritage assets or sites of nature conservation would be neutral in the planning balance rather than weighing in favour.

29. There are further claimed benefits through ecology and green credentials, although there is nothing before me to indicate what these would entail. As such I cannot give them weight in the balance.

Planning and Green Belt Balance

30. The benefits as presented to me are worthy of some positive weight, but this would be limited overall. Against this, I must give the harm to the Green Belt by way of inappropriateness and loss of openness substantial weight in each instance as per policy GB6 of the Framework. There would be further harm by way of the appeal site not being in a suitable location with reference to the Council's spatial strategy. These factors weigh against the proposal considerably.
31. Taken together, the adverse impacts of granting permission in principle would significantly and demonstrably outweigh the benefits of the proposal.

Conclusion

32. The proposal would be contrary to the development plan taken as a whole and the Framework. There are no material considerations which would dictate that a decision should be made other than in accordance with the development plan. For the reasons given, and having regard to all other matters raised, I conclude that the appeal should be dismissed.

C McDonagh

INSPECTOR